

CV-23-005137 UPPER QUINTO LAND & CATTLE COMPANY LLC vs ROMERO RANCH LLC – Defendant’s Motion to Dissolve Preliminary Injunction – DENIED.

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: On June 11, 2026, Defendant submitted a motion to dissolve preliminary injunction. Plaintiff opposed and Defendant replied. Plaintiff is a hunting and fishing organization comprised of individual members. At least three of Plaintiff’s properties are surrounded by Defendant’s property and thus Plaintiff’s members must travel across Defendant’s property to reach Plaintiff’s properties. Previously, Plaintiff moved for a preliminary injunction to enjoin Defendant from blocking Plaintiff and its members from traveling over Defendant’s property to access Plaintiff’s properties. The Court granted the injunction with conditions. Now, Defendant moves to dissolve the preliminary injunction based on two alleged incidents. First, an individual who is also a member of Plaintiff’s organization traveled over Defendant’s property to reach his own private real property. Second, unidentified individuals trespassed and allegedly committed acts of vandalism. “In any action, the court may on notice modify or dissolve an injunction or temporary restraining order upon a showing that there has been a material change in the facts upon which the injunction or temporary restraining order was granted, that the law upon which the injunction or temporary restraining order was granted has changed, or that the ends of justice would be served by the modification or dissolution of the injunction or temporary restraining order.” (Code Civ. Proc., § 533.) Here, Defendant has not satisfied any of the requirements for dissolving the preliminary injunction. Defendant seeks to prevent a private individual from accessing his own private land. Even though such individual also happens to be a member of Plaintiff’s hunting and fishing organization, such an act does not amount to a material change in fact or law. Nor does it establish that the ends of justice would be served by dissolving the injunction because the alleged incidents are divorced from the purpose of the injunction. The requested relief does not flow from the alleged incidents. Defendant’s cursory request for contempt in reply is not properly before the Court. In any event, the Court is unconvinced a motion for contempt would be successful on the facts presented to date. Accordingly, Defendant’s motion to dissolve preliminary injunction is DENIED.

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